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# DEED OF TRUST ESTABLISHING THE OXYGEN FIT GROUP TRUST

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## House of Wealth Accounting Solutions

17 Macauley Place  
Bayswater VIC 3153  
www.houseofwealth.com.au  
Telephone: (03) 9486 3001

ORIGINAL TRUSTEE

2<sup>ND</sup> TRUSTEE

3<sup>RD</sup> TRUSTEE

OXYGEN FIT GROUP PTY LTD  
(DE REGISTERED)

LLOYD THOMAS.

THOMAS PROPERTY MANAGEMENT PTY LTD  
ACN . 608 268 382.

I HEREBY CERTIFY THIS IS A TRUE  
COPY OF THE ORIGINAL

Signed:   
JP GIUFFRE C.P.A.

**J. GIUFFRE & CO. P/L**

A.C.N. 056 312 479  
ACCOUNTANTS  
P.O. Box 115,  
Geelong 3220  
PH: (03) 5229 6526

*This deed has been prepared and settled by legal advisers.*



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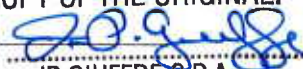
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Signed:   
JP GIUFFRE C.P.A.

J. GIUFFRE & CO. P/L  
A.C.N. 056 312 479  
ACCOUNTANTS  
P.O. Box 115,  
Geelong 3220  
PH (03) 5229 6526

**THIS DEED** is made on the date set out in the Schedule to this Deed.

**PARTIES:**

The person or company described in the Schedule to this Deed as the Trustee  
(**'the Trustee'**), and

The persons or companies described in the Schedule to this Deed as the Initial  
Unit Holders (or, if only one person or company is so described, that person or  
company) (**'the Initial Unit Holders'**).

Original Declaration Of Trust  
Stamped with \$200.00  
Doc ID 2742481, 15 Aug 2011  
SRO Victoria Duty JMW2

**IT IS AGREED**

- A.** The Trustee has agreed to act as trustee for the certain purposes as herein appearing.
- B.** It is intended by these presents to establish a fixed unit trust which shall be administered for the benefit of the persons as herein provided.
- C.** The Initial Unit Holders have paid the Trustee certain funds to acquire the Initial Units in the Trust Fund, as the first Unit Holders of the Trust.
- D.** The Initial Amount shall comprise the fund, at the commencement of this Trust.

**1. DEFINITIONS**

In this Deed, unless the context otherwise requires:-

- (a) **'Accounting Period'** means the period from the date of this Deed until 30 June next following and thereafter the period commencing on 1 July in any year during the Trust Period and ending on 30 June in the following year, and, if the trust created by this Deed terminates on or before the 30th day of June in any year, then the last Accounting Period of the Trust Period shall be the period commencing on 1 July last preceding the date of termination and ending on the date of termination;
- (b) **'the Approved Valuer'** means a practising registered public accountant agreed to by all the Unit Holders and in default of such agreement means a practising registered public accountant nominated at the request of the Trustee or any Unit Holder by the National President or other most senior office bearer for the time being of the Institute of Chartered Accountants in Australia;
- (c) **'Cash'** includes a cheque and bank cheque;





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- (d) **'Certificate'** means the unit certificate to be issued to a Unit Holder in respect of his units under the provisions hereinafter contained;
- (e) **'Current Unit Value'** means the value of a unit at any time computed in accordance with clause 7 of this Deed;
- (f) **'Deed'** or **'this Deed'** includes this deed as amended from time to time;
- (g) **'Initial Amount'** means the amount paid by the Initial Unit Holders to the Trustee to acquire the Initial Units;
- (h) **'Initial Units'** mean the units described as such in the Schedule to this Deed;
- (i) **'Initial Unit Holders'** means the persons or companies described as such in the Schedule to this Deed or, if only one is so described, that person or company;
- (j) **'Month'** means calendar month;
- (k) **'Net Income'** of the Trust Fund or any allocated fund means the income of the Trust Fund as determined or calculated pursuant to clause 11;
- (l) **'Person'** includes company, firm or any body of natural persons;
- (m) **'Register'** means the register to be kept pursuant to clause 18;
- (n) **'Statutory Officer'** in relation to a company means a director, secretary or other officer of that company;
- (o) **'Shares'** include ordinary, preferred and any other class of shares, shares enabling the holder thereof to use and occupy space in a building, stock, debentures, debenture stock, unsecured notes, option certificates, rights, letters of allotment and variable interest stock bonds or obligations;
- (p) **'the Trust'** means the trust hereby constituted to be known by the name set out in the Schedule to this Deed;
- (q) **'Trust Fund'** means the Initial Amount, all moneys paid to the Trustee for the issue of any units pursuant to the provisions of this Deed and all moneys, investments and property paid or transferred to and accepted or acquired by the Trustee or held on its behalf, in any such case to be held upon the trusts hereby constituted and the investments and property from time to time representing the same together with all additions or accretions thereto and includes any part or parts thereof;







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- (r) **'the Trustee'** means the trustee or trustees for the time being of the Trust Fund.
- (s) **'Trustee Investments'** means any investments in which Trustees shall for the time being be authorised by law of any State or Territory of the Commonwealth of Australia to invest Trust moneys whether or not such investments may not be authorised by any other State or Territory;
- (t) **'the Trust Period'** means the period of time from the date of this Deed until the date of termination of the Trust provided for in clause 12;
- (u) **'Unit'** means that interest or part of the Trust Fund as is provided for in this Deed, and which shall have an entitlement to the Net Income and capital of the fund and to vote in relation to the administration of the Trust, in proportion to the number of units held;
- (v) **'Unit Holder'** means a person for the time being registered in the Register as the holder of a unit, includes, persons jointly so registered and also includes the Initial Unit Holders and each and any one of them;
- (w) **'Units on Issue'** means the total number of units, including Initial Units, held by all the Unit Holders or to which all the Unit Holders are entitled but does not include any units which have been redeemed;
- (x) **'Vesting Day'** means:
- (i) the date 80 years from the date on which this Deed takes effect or such other earlier date prescribed by law as being the last day of the perpetuity period for the purposes of the rule against perpetuities; or
  - (ii) such earlier date determined pursuant to subclause 12.2 of this Deed;
- (y) Words importing the singular number include the plural number and vice versa. Words importing any one gender also import each of the other genders;
- (z) References to any statute or statutory provision include any statute or statutory provision as amended, extended, consolidated or replaced by subsequent legislation and any orders, regulations, instruments or other subordinate legislation made under the relevant statute;
- (aa) All references to other provisions of this Deed are deemed to be references to such other provisions as altered, modified, added to or cancelled from time to time in accordance with the provisions of clause 24;
- (bb) In the event of any ambiguity, the provisions of this Deed shall be construed broadly so as to widen and not restrict such provisions;
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(cc) If part or all of any clause contained in this Deed is void or invalid or would otherwise result in all or part of this Deed being void or invalid for any reason whatsoever, then such part or clause shall be severed from this Deed and shall not affect the validity or operation of any other provision of this Deed;

(dd) Headings to clauses are included for the sake of convenience only and shall not affect the meaning of the clauses to which they relate; and

(ee) A reference to 'clause', 'subclause', 'paragraph' or 'subparagraph' in this Deed is intended to refer to and include provisions illustrated by the following:

1. Clause

1.1 Subclause

a) Paragraph

i) Subparagraph

## **2. CONSTITUTION OF THE TRUST FUND**

2.1 The Trustee is appointed and accepts appointment as Trustee of the Trust.

2.2 The Trust Fund shall be held upon trust by the Trustee for the persons hereinafter mentioned subject to and upon the terms and conditions of this Deed.

## **3. CREATION OF UNITS**

3.1 The beneficial interest in the Trust Fund shall initially be divided into the total number of units referred to in the Schedule to this Deed as Initial Units.

3.2 Every unit shall confer a vested and indefeasible interest in the Unit Holder of an equal interest in the Trust Fund but shall not confer any interest in any particular part of the Trust Fund but only such interest in the Trust Fund as a whole as is conferred on a unit under the provisions contained in this Deed.

3.3 At any given date all the units into which the beneficial interest in the Trust Fund is for the time being divided shall be of equal value.

## **4. INITIAL UNITS**

Upon execution of this Deed by all parties to this Deed, the Initial Unit Holders shall immediately become Unit Holders in respect of the number of Initial Units set out against their respective names in the Schedule to this Deed and such Initial Units shall be units for all purposes of this Deed. The Trustee shall cause the names of the Initial Unit Holders to be entered in the Register in respect of the Initial Units so held by them. The Initial Units shall, for the purposes of this Deed, be deemed to





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have been issued to the Initial Unit Holders for a total price equal to the Initial Amount on the date of this Deed, and the Initial Unit Holders shall be deemed to have paid that price to the Trustee.

## **5. CREATION OF ADDITIONAL UNITS**

The Trustee, provided it has the consent of Unit Holders who, between them, hold 100% of the Issued Units, may at any time prior to the termination of the Trust issue and thereby create additional units at a price determined in accordance with clause 8.

## **6. INTEREST OF UNIT HOLDER**

- 6.1 A Unit Holder shall be entitled as herein provided to a vested and indefeasible interest in the income and capital of the Trust Fund but such interest shall not entitle the Unit Holder other than as herein provided.
- 6.2 The Unit Holders for the time being shall be entitled, between them, to the whole of the vested and indefeasible interest in the income and capital of the Trust Fund.
- 6.3 The number of Unit Holders shall not exceed 20. The Trustee shall not issue units, or register a transfer or transmission of units, if it would cause the number of Unit Holders to exceed 20.

## **7. CURRENT UNIT VALUE**

The Current Unit Value at any time shall be determined on the basis of the net asset value, according to Australian accounting principles. Such value may be agreed to by all the Unit Holders and in default of such agreement shall be determined by the Approved Valuer. In making such determination, the Approved Valuer shall be acting as an expert and not as an arbitrator, may engage and rely upon such experts as he thinks fit and his determination shall be final and binding on the Trustee, all Unit Holders, all former Unit Holders and any other interested party. The cost of any such determination shall be borne by the Unit Holders in the same proportion as the number of units they each hold bears to the total number of Units on Issue at the time such determination is requested.

## **8. PRICE OF NEW UNITS**

- 8.1 The price of a new unit shall be such amount as is the Current Unit Value, adjusted to the nearest one cent, or such other amount as is agreed to by all the Unit Holders.
- 8.2 The Trustee, provided it has the consent of Unit Holders who, between them, hold 100% of the Issued Units, may issue units for a consideration other than money provided that the Trustee is satisfied that the consideration received or receivable





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by the Trustee is the equivalent of the price determined in accordance with subclause 8.1.

## **9. CONSENT OF UNIT HOLDERS**

9.1 The Trustee must obtain the consent of at least one hundred percent (100%) of the Unit Holders before exercising any of the reserved powers. For the purpose of this clause, the percentage shall be calculated by reference to the number of units held by each unitholder.

9.2 The reserved powers are:

- (a) redemption of units under clause 10;
- (b) ending the Trust under clause 12 (which requires the unanimous consent of the Unit Holders);
- (c) creation of new or additional units under clause 5; and
- (d) alteration of this Deed under clause 24.

## **10. REDEMPTION OF UNITS**

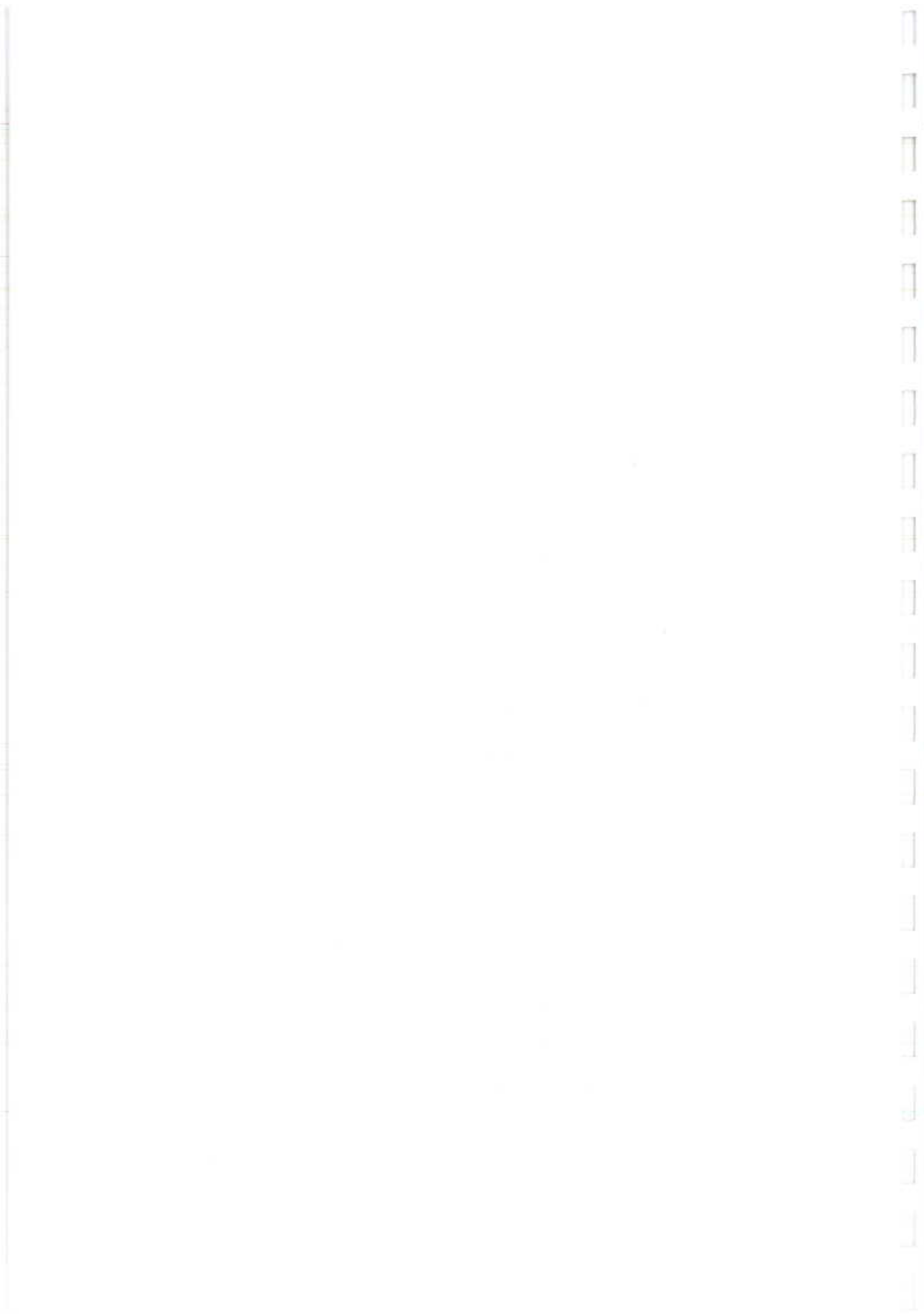
10.1 Any Unit Holder during the continuance of the Trust may in addition to arranging the sale of his units on his own account request the Trustee to redeem some or all of the units represented by his certificate.

10.2 A request for redemption shall be made in writing unless otherwise required by the Trustee.

10.3 On receipt of a request by a Unit Holder (other than a Unit Holder which has notified the Trustee that it holds the Units as trustee of a superannuation fund) the Trustee, provided it has the consent of Unit Holders who, between them, hold 100% of the Issued Units, shall, within 7 days by notice in writing to the relevant Unit Holder, determine to redeem all the Units requested to be redeemed. On receipt of a request by a Unit Holder which has notified the Trustee that it holds the Units as trustee of a superannuation fund, the Trustee shall, within 7 days by notice in writing to the relevant Unit Holder, determine to redeem all the Units requested to be redeemed. In either case the determination shall become effective immediately when the determination is made whereupon the units the subject of the determination shall be taken to have been redeemed immediately and the Unit Holder shall be taken not to be a Unit Holder in respect of those units.

10.4 Upon making a determination to redeem the Trustee shall cause the then Current Unit Value to be calculated in accordance with clause 7 in respect of the units the







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subject of the determination and shall pay the Current Unit Value of those units, less any expenses or charges attributable to the redemption, to the Unit Holder within 30 days of the determination to redeem.

10.5 The Trustee shall remove the name of the registered holder from the Register in respect of all or such number of units as have been redeemed, and shall cancel any certificate relating to such units.

10.6 The number of units so redeemed shall be taken to be cancelled and shall not thereafter be reissued but this clause shall not limit or restrict the right of the Trustee to create and/or issue further or other units.

## **11. DISTRIBUTION OF INCOME AND CAPITAL**

11.1 Subject to sub-clause 11.2, the Trustee shall have power to determine in its absolute discretion whether any receipt, profit or gain or payment, loss or outgoing or any sum of money or investment is or is not to be treated as being on income or capital account provided that if the Trustee shall fail to make a determination or to the extent to which the Trustee fails to make a determination prior to the end of an Accounting Period then the income of the Trust Fund for such Accounting Period shall be calculated in the same manner as the net income of a trust estate is to be calculated under the provisions of the *Income Tax Assessment Act 1936* (Cth) and the *Income Tax Assessment Act 1997* (Cth).

11.2 At the end of each Accounting Period, the Unit Holders shall be presently and absolutely entitled to the Net Income of the Trust Fund derived during such Accounting Period in the same proportion as the number of units held by each Unit Holder bears to the Units on Issue at the end of the Accounting Period.

11.3 Any amount of Net Income of the Trust Fund to which a person has pursuant to subclause 11.2 become entitled at the expiration of an Accounting Period but which has not been distributed to him shall cease to form part of the Trust Fund and shall be held by the Trustee as a separate fund upon trust absolutely for the person entitled thereto but the Trustee shall for convenience of administration have power in respect of the assets of such separate fund to mix and invest the same jointly with the assets of the Trust Fund.

11.4 The Trustee may at any time during an Accounting Period, resolve to make an interim distribution of the Net Income of the Trust Fund on account of the entitlement of a Unit Holder pursuant to subclause 11.2, and upon so resolving the Net Income of the Trust Fund the subject of such resolution shall cease to form part of the Trust Fund and shall be held by the Trustee as a separate fund upon trust absolutely for the persons entitled thereto but the Trustee shall, for convenience of administration, have power in respect of the assets of such separate fund to mix and invest the same jointly with the assets of the Trust Fund.





11.5 The Trustee may from time to time distribute any part of the capital of the Trust Fund in excess of the requirements of the Trust Fund among the Unit Holders who have a right to capital in the same proportion as the number of units held by each Unit Holder bears to the Units on Issue.

11.6 Upon the trust hereby created terminating pursuant to clause 12, the Trustee shall distribute the Trust Fund as provided for in clause 12.

## **12. PERIOD OF TRUST AND TERMINATION**

12.1 The Trust shall be deemed to have commenced on the date of this Deed and to terminate, unless previously terminated by the provisions of this Deed, on the Vesting Day.

12.2 At any time before the date referred to in subparagraph (i) of the definition of the Vesting Day, the Trustee, provided it has the consent of Unit Holders who, between them, hold 100% of the Issued Units, may by deed or oral or written resolution appoint an earlier date to be the Vesting Day.

12.3 (a) Subject to paragraph (b) of this subclause, upon the termination of the Trust the Trustee shall proceed as follows:

- (i) sell and realise the Trust Fund and such sale so far as reasonably practicable shall be completed within 180 days after the termination of the Trust;
- (ii) from time to time distribute to the Unit Holders pro rata to the number of units held by them respectively all net cash proceeds derived from the realisation of the Trust Fund and available for the purpose of such distribution provided that the Trustee shall be entitled to retain out of any moneys in its hands under the provisions of this clause full provision for all costs, charges, expenses, claims and demands incurred made or apprehended by the Trustee in connection with or arising out of the liquidation of the Trust including the fees of any agents, solicitors, bankers, accountants or other persons whom the Trustee may employ in connection with the winding up of the Trust and out of the moneys so retained the Trustee shall be indemnified and saved harmless against any such demands. Every such distribution shall be made only against delivery to the Trustee of the certificate relating to the units in respect of which the same is made together with such form of receipt and discharge as may be required by the Trustee.

(b) If the Trustee shall be satisfied that the Unit Holders have prior to the Vesting Day agreed by resolution to any valid scheme for the distribution of assets in specie, or the continuation of the Trust or for its conversion into an alternative type of trust without breaching the rule against perpetuities, or for the sale and realisation of the Trust Fund otherwise than in accordance with the provisions of subclause 12.3, the Trustee may comply with such scheme and on such





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compliance shall be discharged from all claims or liabilities in respect of the sale and realisation of the Trust Fund.

### **13. POWERS OF THE TRUSTEE**

13.1 Subject to the provisions of this Deed the Trustee shall have all the powers over and in respect of the properties and assets constituting the Trust Fund which it could exercise if it were the absolute and beneficial owner of such properties and assets.

13.2 In making, retaining, transposing or otherwise dealing with any investment pursuant to this Deed, the Trustee shall not be bound to take any greater care or to exercise any greater prudence than an ordinary person would take or exercise if he were employing that person's own funds and without prejudice to the generality of the foregoing all or any part of the funds requiring investment may be employed in any one or more trades or businesses or other investments. Without limiting the generality of the foregoing, the Trustee shall have the following specific powers:

- (a) power to allow all investments at any time forming part of the Trust Fund to remain in the actual state of investment thereof so long as the Trustee may think fit and at any time or times to call in or convert into money the aforesaid investments or any of them or any part thereof;
- (b) power to change and vary any investment for the time being forming part of the Trust Fund for others hereby or by law authorised;
- (c) to apply any part of the Trust Fund, whether capital or income, in the purchase of real and personal property of whatever nature and in the case of real property to acquire any freehold, leasehold, reversionary, contingent or other interest of any nature whatsoever in such property either alone or in partnership or co-ownership with any other person or entity, and whether or not such property is improved or unimproved and whether or not such property produces income and in respect of real property which may be so acquired the Trustee shall have full power at all times:
  - (i) to erect buildings thereon or to improve, demolish, reconstruct, enlarge or alter any existing improvements;
  - (ii) to manage and superintend the management thereof with power to let any part thereof for such term of years and upon and subject to such covenants and conditions as it may think advisable and to grant renewals of leases and to accept surrenders;
  - (iii) to expend out of the Trust Fund such sums as shall in the opinion of the Trustee be necessary for repairs, renewals, maintenance or improvements; and
  - (iv) to partition, subdivide or develop any parts thereof and to employ any engineers, town planners, surveyors, builders architects and agents to







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prepare plans;

- (d) power to permit any Unit Holder or other person to reside in any dwelling house or home unit which or the proceeds of sale of which may for the time being be subject to the trusts hereof upon such conditions as to payment of rents rates taxes and other outgoings and as to repair and decoration and for such period and generally upon such terms as the Trustee in its discretion shall think fit;
- (e) power to pay all insurance premiums rates taxes rents and other outgoings in connection with any life policies or any real or personal property subject to the trusts hereof and to manage the property and effect such repairs as the Trustee may consider necessary or advisable to such property and where the Trustee is unable to charge such expenditure against income from the property it shall be at liberty to resort to capital;
- (f) power to sell either for distribution or for reinvestment or for any other purpose whatsoever the whole or any part of the Trust Fund or the investments representing the same at any time for such price and on such terms as the Trustee may think fit and the Trustee shall have power to invest the proceeds of any such sale in the manner hereby authorised;
- (g) power to guarantee indemnify or become surety for with or without security (such security to include any mortgage charge or other like security over any property real or personal for the time being subject to the Trust and whether such security be direct or collateral) and with or without remuneration, the due payment of money or debts of any person, including any Unit Holder or any business partnership enterprise or corporation in which any Unit Holder may be a shareholder or of which any Unit Holder may be a director and to guarantee indemnify or become surety with or without security for the due performance of any contract agreement covenant or obligation by any person, including any Unit Holder or any business partnership corporation or enterprise in which any Unit Holder may be a shareholder or of which any Unit Holder may be a director;
- (h) power to lease or license all or any part of any real or personal property for the time being subject to the Trust for any period upon such terms and conditions and for such rent as the Trustee shall in its absolute discretion think fit and make allowances to and with tenants and others and accept surrenders and waive breaches of covenants and determine tenancies and licences and raise out of any capital or income in its hands any sum from time to time required and in its opinion properly payable thereout for the exercise of any of the powers and discretions herein contained and generally to deal with the real and personal property in a proper and due course of management as if beneficially entitled thereto;
- (i) power to set aside out of the capital or income of the Trust Fund from time to







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time such sum of money as may in the opinion of the Trustee be sufficient to meet any debt or obligation due or accruing due;

- (j) power to pay calls on shares accept transfers of shares and concur in any arrangements for the modification of the rights of the holders of any debentures or any of the stocks securities or shares in which the Trust Fund may from time to time be invested attend all meetings of shareholders stockholders or otherwise and vote at its discretion at any such meetings at which it is entitled to vote with power to execute any proxy in favour of any person;
- (k) power to employ agents in the execution of the trusts and powers herein contained and instead of acting personally from time to time to employ and pay out of the Trust Fund such managers agents advisers solicitors accountants or other persons to transact any business or to do any act required to be done in connection with the administration of the Trust including receipt or payment of money;
- (l) power to enter into partnership from time to time with such person or persons or with any company or other incorporated body and in all respects on such terms and conditions as the Trustee shall think fit and to vary the terms of any such partnership;
- (m) power to terminate upon such terms and conditions as the Trustee shall think fit any partnership and to join in and be party to any partition of the assets thereof;
- (n) power in its absolute discretion to raise or borrow money or obtain any accommodation either bearing or free of interest and to secure the repayment of money so borrowed or accommodation so obtained and any interest thereon by mortgage or charge over all or any of the assets of the Trust Fund or with or without giving any other form of security or acknowledgment and apply such money for any of the purposes for which either the income or the capital of the Trust Fund is for the time being applicable hereunder including the investment of such money in any manner and no lender shall be concerned to enquire as to whether the necessity for any such borrowing or accommodation has arisen or as to the purpose for which it is required or as to the application of the money borrowed or accommodation obtained;
- (o) to continue, establish, acquire or carry on or join in the continuation establishment acquisition or carrying on of any trade, business or profession whatsoever whether or not of a speculative nature anywhere in the world and whether or not alone or in partnership with another person or entity;
- (p) in the carrying on of any such trade or business or profession, to acquire property, engage staff, borrow money on the security of the Trust Fund, with or without security, and incur liabilities binding on the Trust Fund on such





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terms as the Trustee may consider expedient and to employ therein the whole or such part of the Trust Fund as the Trustee thinks advisable, and generally to conduct, carry on and dispose of the trade, business or profession in such manner as the Trustee shall in its absolute discretion think fit and the Trustee shall not be liable for any loss occasioned by it in continuing, establishing acquiring carrying on or disposing of any trade business or profession under this power;

- (q) in the carrying on of any such trade or business or profession in addition to any other powers of the Trustee, to appoint a manager or managers to carry on such trade business or profession and to authorise such manager or managers in the course of carrying on such trade business or profession to operate on any bank account of the Trustee and to deposit moneys received in the course of carrying on of such trade or business to the credit of such account, to endorse bills of exchange on behalf of the Trustee and to draw cheques or other orders on such account as may be necessary or expedient;
- (r) to grant options to any persons to purchase assets or property of the Trust Fund for such periods and on such terms as the Trustee may in its absolute discretion determine and in the exercise of such discretion the Trustee shall not be obliged to apply or invest amounts standing to the credit of the Trust Fund in investments or securities authorised by law in preference to the exercise of the other of its powers contained in this clause;
- (s) to exercise all the powers conferred upon a trustee for sale by the Trustee Act 1925 (NSW), the Trustee Act 1958 (Vic), the Trusts Act 1973 (Qld), the Trustee Act 1936 (SA), the Trustees Act 1962 (WA), the Trustee Act 1898 (Tas), the Trustee Act 1980 (NT) and the Trustee Act 1957 (ACT);
- (t) with respect to any company in which the Trustee holds shares stocks or debentures or is otherwise interested, to exercise the following powers:
  - (i) to pay calls on any shares or to permit any such shares to be forfeited and sold;
  - (ii) to purchase any further shares stock or debentures and to take up any shares stock or debentures of a new issue of any such company;
  - (iii) to lend money to any such company whether secured by debentures or in any other way or not secured and at such rate of interest and upon such terms as the Trustee thinks fit;
  - (iv) to hold any shares stock or debentures acquired by the Trustee pursuant to the powers conferred by statute or otherwise by law or by this clause for as long as the Trustee thinks fit;
  - (v) to sell any shares stock or debentures held by the Trustee at such price as the Trustee thinks fit (whether or not such price is less than the sum that appears from the accounts of the company to be the value of such shares stock or debentures) and upon such terms with or without security as the Trustee thinks fit; and





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- (vi) to assent to or join in any arrangement relating to the sale, transfer or exchange of any such shares stock debentures or interests or modifying any rights privileges or interests in relation thereto and to agree to any scheme or arrangement for the increase or reduction of the value of any shares or stock or the amount of the capital of any company in which any shares stock or investments of the Trust Fund for the time being may be invested and for any such purpose to deposit surrender or exchange any scrip or document of title relating thereto, and to pay out of the capital of the Trust Fund or the income thereof any contribution or incur any necessary expense in connection with such scheme or arrangement and generally to manage and deal with any such shares stock or investments as if the Trustee owned them beneficially;
- (u) to renew, alter or vary any mortgage or mortgages which may exist on any part of the Trust Fund upon such terms and conditions as the Trustee shall in its absolute discretion think fit and the Trustee may raise money upon the security or mortgage of the Trust Fund or any part or parts thereof for the purpose of repaying any such mortgage or any mortgage that may be given in substitution therefor at such rate of interest and upon such terms and conditions as the Trustee shall in its absolute discretion think fit;
- (v) in its absolute discretion at any time and from time to time and at the expense of the Trust Fund to convert or join in converting the whole or any part of the real and personal property from time to time representing the Trust Fund or any part thereof into one or more companies limited by shares in such manner as the Trustee may think fit and the Trustee may at the like expense promote or assist in promoting any company or companies for taking over and acquiring in whole or in part the real or personal property in this clause mentioned and it is declared that any such company may be promoted or incorporated in any country and it is further declared that the Trustee may sell or transfer the whole or any part or parts of such real and personal property to such company or companies in consideration in either case wholly or in part of preference shares of any such company and as to the balance (if any) in cash payable either immediately or by instalments and with or without security and it is further declared that the Trustee (or where the Trustee is a company, any officer or member of such company) may act as director manager or secretary or hold any other office in relation to any such company without being liable to account for any remuneration received by it as such and may enter into any arrangements as to such company or as to the sale or transfer of the real and personal property or any part thereof to any such company (whether before or after the incorporation thereof) as the Trustee may think fit notwithstanding that the Trustee (or where the Trustee is a company, any officer or member of such company) may be the promoter of any such company or may be interested or concerned therein or intended so to be as shareholder debenture holder director manager secretary or in any other capacity and such sale or transfer may if deemed necessary or expedient be effected by the Trustee in that capacity or in its capacity as Trustee in which case it shall have the like powers and authorities in relation thereto as are hereinbefore given to it as Trustee and all shares debentures moneys and property howsoever received by







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the Trustee as Trustee as consideration for any such sale or transfer shall be vested in and held by the Trustee and shall be deemed to be authorised investments of the Trust Fund;

- (w) to establish or join in the establishment of any provident benefit superannuation or retirement fund for the benefit of any employee or employees of the Trustee in respect of any business conducted by the Trustee and upon such terms as the Trustee shall in its absolute discretion think fit;
- (x) where any Trustee hereof is a company, such Trustee shall have, as trustee hereof, all the powers conferred upon such company pursuant to its Memorandum and Articles of Association or other constituent document or under the relevant legislation of the place where and pursuant to which such company was incorporated;
- (y) power to do all such other things as the Trustee could do if it was the absolute beneficial owner of the Trust Fund;
- (z) despite any other provision of this Deed, power to specify in respect of each distribution of income or capital the extent to which that distribution consists of or is attributable to various types of income or capital, including, but without limiting the generality of the foregoing, various types of income or capital according to the nature, character or source of that income or capital and to allocate against any type of income or capital derived by the Trustee such expenses, outgoings and losses as the Trustee may think fit;
- (aa) power to deduct from any amount of income or capital to which a Unit Holder is entitled, the amount of any income tax or other government impost payable by the Trustee in respect of that income or capital;
- (bb) the Trustee may from time to time by irrevocable power of attorney or otherwise, appoint any corporation, firm, person or body of persons in Australia and elsewhere, whether with or without remuneration or whether nominated directly or indirectly by the Trustee, to be the attorney of the Trustee, whether jointly and severally or otherwise, for such purposes and with such powers, authorities and discretions (not exceeding those vested in or exercisable by the Trustee under this Deed), for such period and subject to such conditions as the Trustee thinks fit, and may from time to time revoke or cancel such appointment and remove and if thought desirable reappoint such attorney and determine their power.

Any such power of attorney may contain such provisions for the protection and convenience of persons dealing with the attorney as the Trustee thinks fit and may also authorise the attorney to delegate all or any of the powers, authorities and discretions vested in the attorney;

- (cc) to execute and prosecute legal proceedings of any kind and in any court to







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enforce any contract or other arrangement entered into or to recover damages for breach of such contract other arrangement;

- (dd) to open and operate accounts with any bank anywhere in the world, to draw, make, accept, endorse, discount, execute, issue, present, sign or otherwise deal with any promissory notes, bills of exchange, bills of lading, cheque or other negotiable or transferable instruments;
  - (ee) in the event of any probate, succession, estate or other duties, fees or taxes becoming payable in any part of the world in respect of the Trust Fund or any part thereof on the death of any Unit Holder or any other person at the Trustee's discretion absolutely to pay all or any part of such duties, fees and taxes out of the Trust Fund notwithstanding that such duties, fees or taxes or some part thereof are not or may not be recoverable from the Trustee or from the Trust Fund by legal process in the place where the same became payable;
  - (ff) to permit any asset of the Trust Fund to be held or registered in the name of any nominee of the Trustee and to deposit securities to the deeds and other documents belonging or related to the Trust Fund with any bank or solicitor; and
  - (gg) power to do all such other things as are or may seem to the Trustee in its absolute discretion to be incidental or conducive to the furthering of the interests of the Unit Holders hereunder or any of them or to the exercise by the Trustee of its powers hereunder or any of them or the performance of the trusts hereof or any of them.
- 13.3 Without in any way affecting the generality of the foregoing the Trustee for the purpose of managing the Trust Fund and in carrying out and performing the duties and obligations on its part as owner of the investments comprised in the Trust Fund may appoint and engage any valuers, legal practitioners, accountants, surveyors, contractors and such other persons as may be necessary usual or desirable for the purpose of exercising its powers and performing its obligations and all fees, charges, and moneys payable to any such person and all disbursements, expenses, duties and outgoings properly chargeable in respect thereof shall be paid from the Trust Fund.
- 13.4 Except as provided in clause 10 all costs stamp duties and other disbursements and expenses incurred by the Trustee in the acquisition and sale of or other dealings by the Trustee with any of the assets or investments comprised in the Trust Fund shall be payable by the Trust Fund and shall be a charge thereon.
- 13.5 The Trustee may cause to be insured against all risks including loss of rent, the freehold and leasehold property of the Trust to the full insurable value thereof.
- 13.6 No deductions from trust income shall be made otherwise than as prescribed in this





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Deed.

#### **14. TRUSTEE'S INDEMNITIES**

It is here expressly declared as follows:

- (a) The Trustee shall not be liable or answerable or accountable hereunder for any loss not attributable to:
  - (i) its own dishonesty; or
  - (ii) the wilful commission by it of an act known by it to be a breach of trust that may be suffered or incurred in exercising any of the directions powers authorities or discretions given to or conferred upon the Trustee under this Deed or in investing moneys available for investment provided that the provisions of this subparagraph (ii) shall not apply to an act known by the Trustee to be in breach of the trust as hereinbefore provided where such act was authorised in writing by all Unit Holders at such time to the intent that this clause shall exclude all Unit Holders whether they may have approved the Trustee's act or not and whether they shall have been Unit Holders at the time of the act or not, from taking any action whether at law or in equity or otherwise under the terms hereof arising indirectly or directly from the commission by the Trustee of the act in breach of trust;
- (b)
  - (i) The right of indemnity to which the Trustee may be entitled at law or in equity for debts or losses incurred by the Trustee in administering the Trust Fund or in carrying on any business on behalf of the Trust or for or in respect of any other matter whatsoever is expressly limited and restricted to the assets capital and income of the Trust Fund and shall not extend, either directly or indirectly, to the assets or capital of any Unit Holder or be enforceable against any Unit Holder.
  - (ii) The Trustee shall not have any claim of any nature against any Unit Holder for any liabilities incurred in connection with any authorised investment or in respect of any action taken or omission made by it.
  - (iii) No Unit Holder from time to time or at any time shall be liable to contribute towards any liability, loss or obligation of the Trustee or incurred by or caused by the Trustee, except, in relation to a Unit Holder, to the extent of any amount of the price payable pursuant to clause 8 which is unpaid in respect of any unit issued to or held by such Unit Holder;
- (c) Nothing in this Deed shall prevent the Trustee or any subsidiary of the Trustee or the statutory officers or members of any thereof from subscribing for purchasing holding dealing in or disposing of units or from otherwise at any time contracting or acting in any capacity as representative or agent or entering in to any contract or transaction whatsoever with any other of the foregoing or any Unit Holder or any company part of whose shares forms part of the Trust Fund or from being interested in any such contract or transaction or otherwise





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and none of them shall be in any way liable to account to any of them or to the Unit Holders or any company any part or whose shares forms part of the Trust Fund in respect of any such contract or transaction or otherwise and none of them shall be in any way liable to account either to any other of them, the Unit Holders or any company any part of whose shares forms part of the Trust Fund for any profits or benefits howsoever made or derived thereby or in connection therewith;

- (d) In no event shall the Trustee be bound to make any payment to any Unit Holder except out of the funds held by it for that purpose under the provisions of this Deed;
- (e) The Trustee shall not in any event be liable to the Unit Holders to any greater extent than in respect of the investments cash and other property actually vested in the Trustee or received by it in accordance with the provisions of this Deed; and
- (f) The Trustee shall not be bound to make any apportionment or keep separate accounts of the investments comprised in the Trust Fund and the Trustee shall hold the whole of the Trust Fund for the time being as one Trust Fund on the trusts of this Deed.

## **15. RETIREMENT AND APPOINTMENT OF TRUSTEE**

- 15.1 The Trustee may be removed, and a new Trustee appointed in its place, by a written or oral resolution or a deed executed by Unit Holders who, between them, hold 100% of the Issued Units.
- 15.2 The Trustee may resign as Trustee and appoint a new Trustee in its place by oral or written resolution or deed.
- 15.3 The number of Trustees may at any time be one or more than one.

## **16. REMUNERATION FOR MANAGEMENT OF TRUST FUND**

The Trustee shall be entitled to remuneration for its services in the manner following:

- (a) the remuneration to be paid to the Trustee shall be such sum out of the income or capital of the Trust Fund whether by way of fixed periodical fee or salary or commission on the income or capital of the Trust Fund or otherwise as shall be fixed by a resolution of the Unit Holders from time to time; and
- (b) the Trustee may pay all the costs charges and expenses of establishing and administering the Trust Fund (including if the Trustee is a company whose







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only business is administering the Trust Fund then all its usual operating costs) from the capital or income thereof as it may in its absolute and unfettered discretion determine and any Trustee being an accountant, solicitor or other person engaged in any profession shall be entitled to charge and be paid from time to time all usual professional charges for business transacted time expended and acts done by him or any employee or partner in connection with the trusts hereof including any acts which a Trustee not being in any profession could have done personally.

## **17. APPLICATION FOR UNITS AND ISSUE OF CERTIFICATES FOR UNITS**

- 17.1 Application for units may be made in writing in such form as the Trustee shall from time to time determine. The Trustee may make offers to issue units and, where such offers are accepted, the Trustee may issue units without first receiving a formal application for them.
- 17.2 Whenever the Trustee is required pursuant to the provisions of this Deed or otherwise to register a person as a Unit Holder it shall cause such person to be entered on the Register and shall issue a certificate or certificates in such form as the Trustee shall determine. Each certificate shall have a distinctive number and shall specify the number of units to which the same relates.

## **18. REGISTER OF UNIT HOLDERS**

- (a) a register ('the Register') of the Unit Holders will be kept up to date by the Trustee;
- (b) any change of name or address on the part of any Unit Holder shall be notified to the Trustee who shall alter the Register accordingly;
- (c) Unit Holders shall be entitled free of charge at any time to inspect the Register;
- (d) the Trustee may, but shall not be obliged to, enter on the Register notice of any trust express implied or constructive in respect of any unit;
- (e) the Trustee shall recognise the Unit Holder his executors or administrators as the absolute owner of the units in respect of which he is registered and all persons may act accordingly and the Trustee shall not save as herein otherwise provided or except as ordered by a Court of competent jurisdiction or as by Statute required be bound to take notice of any trust or equity whether express or implied or constructive affecting the ownership of any unit or the rights incident thereto and the receipt such Unit Holder his executors or administrators for any money payable in respect of the units represented by his certificate shall be a good discharge to the Trustee; and







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- (f) subject to the provisions herein contained any Unit Holder shall be entitled without fee on surrendering his certificate to the Trustee to exchange into certificates of different amounts of units not exceeding in the aggregate the total number of units represented by the certificate surrendered upon making application thereof in such form as the Trustee prescribes.

## **19. TRANSFER OF UNITS**

- 19.1 The transfer of units shall be effected by transfer in writing in the usual form applicable to transfers of shares or in such other form as the Trustee may from time to time prescribe.
- 19.2 Every instrument of transfer shall be executed by the transferor and by the transferee and shall be delivered to the Trustee and the transferor shall be deemed to remain the proprietor of the units until the name of the transferee is entered in the Register in respect thereof.
- 19.3 The Trustee may decline to recognise any instrument of transfer unless the instrument of transfer is duly stamped and is accompanied by the certificate for the units to which it relates and such other evidence as the Trustee may reasonably require to show the right of the transferor to make the transfer.
- 19.4 Upon the making of an entry in respect of a transfer the certificate which accompanied the instrument of transfer shall be cancelled by the Trustee and a new certificate for the units transferred shall be issued by the Trustee. If the whole of the units comprised in the first mentioned certificate have not been transferred a new certificate for the balance of the units comprised therein shall be issued to the transferor. The provisions of subclause 17.2 shall apply to the new certificate mentioned in this clause.

## **20. TRANSMISSION OF UNITS**

- 20.1 In case of the death of a Unit Holder the survivors or survivor where the deceased was a joint holder and the executors and/or administrators of the deceased where he was a sole holder shall be the only persons or person recognised by the Trustee as having any title to the units represented by the certificate or certificates registered in his name.
- 20.2 Any person becoming entitled to any units in consequence of the death or bankruptcy of a Unit Holder may upon such evidence being produced as may from time to time be required by the Trustee and subject as hereinafter provided elect either to be registered himself as holder of the units or to have some person nominated by him registered as the transferee thereof.
- 20.3 If the person so becoming entitled shall elect to be registered himself he shall deliver to or send to the Trustee a notice in writing in the form prescribed by the





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Trustee signed by him stating that he so elects. If he shall elect to have his nominee registered he and the nominee shall testify the election by delivering or sending to the Trustee a transfer to that nominee. All the provisions of this Deed relating to the registration of transfers of units shall be applicable to any such notice or transfer as aforesaid as if the death or bankruptcy of the Unit Holder had not occurred and the notice or transfer was a transfer executed by such holder.

- 20.4 A person becoming entitled to units in consequence of the death or bankruptcy of a Unit Holder shall be entitled to receive and may give a discharge for all moneys payable in respect of the units but he shall not be entitled to receive notices of or to attend or vote at any meeting of Unit Holders until he shall have become a Unit Holder in respect of the units.

## **21. MEETINGS OF UNIT HOLDERS**

- 21.1 The Trustee shall, if it has given notice of retirement pursuant to subclause 15.2 or if it has received a requisition for a meeting as provided for in subclause 21.3 convene a meeting of Unit Holders and may also at any other time and from time to time convene a meeting of Unit Holders.
- 21.2 A Unit Holder shall be entitled to attend and vote at any meeting of Unit Holders and shall be entitled to appoint another person (whether a Unit Holder or not) as his proxy to attend and vote. Such proxy shall have the same rights as the Unit Holder to vote whether on a poll or a show of hands, to speak and be reckoned in a quorum.
- 21.3 An application delivered to the Trustee, being an application signed by not less than one tenth in number of the Unit Holders to which this Deed relates shall be deemed to be a requisition for a meeting of Unit Holders.
- 21.4 The requisition must state the objects of the meeting and the terms of any resolution proposed to be submitted to the meeting.
- 21.5 At least 14 clear days notice specifying the place day and hour of meeting and the general nature of the business to be transacted and containing such other or further information as the Trustee may think fit and the terms of any resolution to be proposed shall be given previously to any meeting of the Unit Holders. Such notice shall be given to all Unit Holders, but the accidental omission to give such notice to or the non receipt of a notice of meeting by a Unit Holder shall not invalidate the meeting.
- 21.6 No business shall be transacted at any such meeting unless a quorum is present when the meeting proceeds to business. The quorum necessary for a meeting shall be at least 2 persons holding or representing by proxy the holders of at least 50% of the Units on Issue. If within 15 minutes from the time appointed for any meeting a quorum is not present the meeting shall stand adjourned to the same day in the next





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- week at the same time and the same place. At an adjourned meeting the Unit Holders present in person or by proxy (whatever their number and the number of units represented by their certificates) shall form a quorum and shall have power to pass resolutions. The Trustee or its duly appointed representative shall be entitled to attend and address the meeting.
- 21.7 Any person nominated by the Trustee (whether a Unit Holder or not) shall act as Chairman of any meeting of Unit Holders.
- 21.8 (a) At any meeting of Unit Holders a resolution put to the vote of the meeting shall be decided on a show of hands unless a poll is (before or on the declaration of the result of the show of hands) demanded by the Chairman or by at least one Unit Holder present in person or by proxy.
- (b) Unless a poll is so demanded, a declaration by the Chairman that a resolution has on a show of hands been carried or carried unanimously, or by a particular majority, or lost, and an entry to that effect in the book containing the minutes of the proceedings of the Trust shall be conclusive evidence of the fact without proof of the number or proportion of the votes recorded in favour of or against the resolution.
- (c) The demand for a poll may be withdrawn.
- (d) If a poll is duly demanded, it shall be taken in such manner and either at once or after an interval or adjournment or otherwise as the Chairman directs, and the result of the poll shall be the resolution of the meeting at which the poll was demanded but a poll demanded on a question of adjournment shall be taken forthwith.
- 21.9 In the case of an equality of votes, whether on a show of hands or on a poll, the Chairman of the meeting at which the show of hands takes place or at which the poll is demanded shall not be entitled to a second or casting vote.
- 21.10 Each Unit Holder entitled to vote may vote in person or by proxy or by attorney and, on a show of hands, every person present who is a Unit Holder or a representative of a Unit Holder shall have one vote and, on a poll, every Unit Holder present in person or by proxy or by attorney or other duly authorised representative shall have one vote for each unit he holds.
- 21.11 In the case of joint holders the vote of the senior who tenders the vote whether in person or by proxy, shall be accepted to the exclusion of the votes of the other joint holders and, for this purpose, the senior shall be the joint holder whose name first appears in the Register.
- 21.12 A Unit Holder who is of unsound mind or whose person or estate is liable to be dealt with in any way under the law relating to mental health may vote, whether on
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a show of hands or a poll, by his committee or trustee or by such other person as properly has the management of his affairs, and any such committee, trustee or other person may vote by proxy or attorney.

- 21.13 No objection shall be raised to the qualification of any voter except at the meeting or adjourned meeting at which the vote objected to is given or tendered and every vote not disallowed at such meeting shall be valid for all purposes, and any such objection made in due time shall be referred to the Chairman of the meeting, whose decision shall be final and conclusive.
- 21.14 The instrument appointing a proxy shall be in writing under the hand of the appointor or his attorney duly authorised in writing or, if the appointor is a corporation, either under seal or under the hand of a statutory officer or attorney duly authorised. A proxy may, but need not be, a Unit Holder. The instrument appointing a proxy shall be deemed to confer authority to demand or join in demanding a poll.
- 21.15 A corporation being a Unit Holder may vote by any statutory officer or representative duly authorised, who shall be entitled to speak, demand a poll, vote, act as proxy and in all other respects exercise the rights of a Unit Holder and shall be reckoned as a Unit Holder for all purposes.
- 21.16 The instrument appointing a proxy and the power of attorney or other authority (if any) under which it is signed or a notarially certified copy of such power or authority shall be deposited with the Trustee not less than 2 clear days before the time appointed for holding the meeting or adjourned meeting at which the person named in the instrument proposes to vote and in default the instrument of proxy shall not be treated as valid. No instrument appointing a proxy shall be valid after the expiration of 12 months from the date of its execution.
- 21.17 An instrument appointing a proxy may be in any form sufficient to convey to the Trustee that a proxy has been appointed in respect of a particular meeting.
- 21.18 The Chairman may with the consent of any meeting of Unit Holders adjourn the same from time to time and from place to place.
- 21.19 A resolution passed at a meeting of the Unit Holders duly convened and held in accordance with these presents shall be binding upon all the Unit Holders, whether present or not present at such meeting and each of the Unit Holders and the Trustee shall be bound to give effect thereto accordingly.
- 21.20 The expression 'resolution' where used in relation to the Unit Holders in this Deed means a resolution passed at a meeting of the Unit Holders duly convened and held in accordance with the provisions herein contained by all the persons voting thereat upon a show of hands and if a poll is demanded then by all the votes given on such a poll.





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- 21.21 The Unit Holders may unanimously agree to waive the requirements of this clause, including the required timeframe for notice of such meeting, in respect of any decision made by them.

## **22. ACCOUNTS AND RECORDS**

- 22.1 The Trustee shall cause true accounts to be kept of all sums of money received and expended by or on behalf of the Trust and the matters in respect of which such receipt and expenditure take place and of all sales and purchases of investments and of assets and liabilities of the Trust.
- 22.2 No Unit Holder may, except with the written consent of the Trustee, have access to, or inspect, any accounts, documents or other records in the possession or control of the Trustee in any way relating to the Trust Fund, the Trustee's administration or management of the Trust Fund, or the exercise or non-exercise of any power or discretion by the Trustee.
- 22.3 No Unit Holder shall be entitled to receive, except with the consent of the Trustee, any information from the Trustee relating to the matters referred to in this clause provided that nothing in this clause 22 shall prevent the Trustee from:
- (a) providing a Unit Holder with a copy of this Deed (and any amendment to this Deed);
  - (b) informing a Unit Holder of any entitlement to income or capital to which that Unit Holder is absolutely entitled; and
  - (c) providing a Unit Holder with a copy of the financial accounts relating to the Trust Fund for an accounting period.

## **23. NOTICES**

Any notice required to be given to the Trustee or to a Unit Holder shall be deemed to have been properly given if it is in writing and either delivered or sent by post in a properly prepaid envelope addressed to the Trustee at its registered office in the case of a company or last known place of residence in the case of an individual or to such Unit Holder at his address appearing in the Register. In the case of posting such notice shall be deemed to be served on the third day following that on which the same is posted.

## **24. ALTERATIONS TO TRUST DEED**

The Trustee, provided it has the consent of Unit Holders who, between them, hold 100% of the Issued Units, may at any time vary any of the provisions of this Deed by a deed or by oral or written resolution of the Trustee unless another provision of





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this deed provides to the contrary.

## 25. TRUSTEE AND UNIT HOLDERS BOUND BY DEED

The terms and conditions of this Deed shall be binding on the Trustee, the Unit Holders and the respective legal personal representatives, successors and assigns of the Trustee and the Unit Holders and all persons claiming through them respectively as if all such Unit Holders or other persons herein mentioned had been party to this Deed.

## 26. MISCELLANEOUS PROVISIONS

- 26.1 This Deed shall be governed by and construed in accordance with the laws of the State or Territory in which the Trustee named in the Schedule to this Deed resides (if a natural person) or has its registered office (if a company).
- 26.2 Minors shall be eligible to hold units in the Trust and a minor's receipt for moneys whether income or capital shall be a sufficient discharge to the Trustee.

## 27. ADDITIONAL PROVISIONS CONCERNING TRANSFER OF UNITS

- 27.1 Notwithstanding any other provision of this Deed no unit may be transferred by a Unit Holder except in accordance with this clause.
- 27.2 Every Unit Holder who intends to transfer any units ('**the Vendor**') shall give notice in writing to the Trustee ('**a Transfer Notice**') that he desires to transfer the same. A Transfer Notice shall constitute the Trustee his agent for the sale of his units in one or more lots at the discretion of the Trustee at a price to be agreed upon by the Unit Holder and the Trustee or, in default of such agreement, at the Current Unit Value.
- 27.3 Upon the price being fixed the Trustee shall forthwith give notice to all other Unit Holders of the number and the price of the units to be sold and offer such units for sale to the other Unit Holders in the same proportions as their existing holdings bear to the total number of units held by the Unit Holders receiving such offer and invite each of them to state in writing within 21 days from the date of the notice whether they are willing to purchase any and if so what number of the units.
- 27.4 At the expiration of the 21 days the Trustee shall allocate the units amongst the Unit Holders who shall have expressed his or their willingness to purchase as aforesaid at the price fixed in accordance with subclause 27.2. Should any such Unit Holder not wish to purchase the whole of the number of units offered to him under subclause 27.3 those units shall be offered to the Unit Holders who shall have expressed his or their willingness to purchase as aforesaid in the same proportions as each of their existing holdings bear to the total of their existing holdings and this procedure shall be repeated and allocation of units made until







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there is no such Unit Holder willing to purchase any number of the units offered for transfer by the Vendor and thereafter the Vendor shall be entitled to sell any such units remaining to any person whatsoever at a price per unit not less than that offered to the other Unit Holders. Any Unit Holder receiving an allocation pursuant to this clause is hereinafter referred to as '**the Purchaser**'.

27.5 Upon any allocation of units being made pursuant to subclause 27.4, the Vendor shall be bound on payment of the price to transfer his units or such number thereof as are sold to the Purchaser and the Purchaser shall be bound to pay to the Vendor the price in accordance with subclause 27.6. If the Vendor makes default in so doing the Trustee shall forthwith be deemed to be, irrevocably, the duly appointed Attorney of the Vendor with full power to exercise, complete and deliver in his name and on behalf of the Vendor a transfer of his units or such number thereof as are sold to the Purchaser and to receive and give a good discharge for the purchase money on behalf of the Vendor and upon any such transfer being executed and delivered the Trustee may enter the name of the Purchaser in the Register as the holder by transfer of the units purchased by him.

27.6 Upon delivery of a duly executed transfer and the certificates in respect of the units to be transferred the Purchaser shall be bound to pay the whole of the price within 30 days.

27.7 Notwithstanding any other provision of this Deed, if a Unit Holder:

- (a) becomes of unsound mind or a person whose person or estate is liable to be dealt with in any way under the law relating to mental health; or
- (b) becomes bankrupt or makes any arrangement or composition with his creditors generally;

then such Unit Holder shall be deemed to have given an irrevocable Transfer Notice in respect of all his units as provided in subclause 27.2 and the provisions of this clause shall apply mutatis mutandis to such a Transfer Notice.

## **28. EXERCISE OF DISCRETIONS AND POWERS**

28.1 Where there is more than one Trustee the Trustees may act by a majority vote.

28.2 Every Trustee which is a company may exercise or concur in exercising any discretion or power hereby or by law conferred on the Trustee by a resolution of the company or by a resolution of its Board of Directors or governing body and may delegate the right and power to exercise or concur in exercising any such discretion or power to one or more members of its Board of Directors or governing body appointed from time to time by the Board of Directors or governing body for that purpose.







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28.3 Any Trustee and (where the Trustee is a company) any member or statutory officer of the Trustee may exercise or concur in exercising all powers and discretions hereby or by law given to the Trustee notwithstanding that it or he respectively may have a direct or other personal interest whether as Trustee or otherwise in the mode or result of exercising any such power or discretion but any Trustee, member or statutory officer as aforesaid may nevertheless abstain from acting except as a merely formal party in any matter in which it or he may be so personally interested and any person so exercising or concurring in the exercise of any such power or discretion or so acting shall not be liable to account to the Unit Holders or the Trustee for any remuneration or other benefits accruing therefrom.

## **29. UNIT HOLDER'S ENTITLEMENT EXCEEDS AMOUNT RECEIVED BY TRUSTEE**

Notwithstanding any other provision of this Deed, where a Unit Holder may, but for this clause, become entitled to payment of any income or capital in excess of the income or capital received by the Trustee, the Unit Holder shall not be entitled to demand pay of and the Trustee shall not be obliged to pay to the Unit Holder any part of that excess.





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## SCHEDULE

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**Date of Deed:** 2-08-2011

**Trustee:** Oxygen Fit Group Pty Ltd  
(A.C.N. 152 435 615)

**Address of Trustee:** 27 Creswick Drive  
Point Cook Victoria 3030

**Initial Unit Holder:** Thomas Empire Pty Ltd  
(A.C.N. 152 384 293)

**Address of Initial Unit Holder:** 27 Creswick Drive  
Point Cook Victoria 3030

**Number of Initial Units:** 40

**Initial Unit Holder:** David Serrano

**Address of Initial Unit Holder:** 29 Lonsdale Circuit  
Hoppers Crossing Victoria 3029

**Number of Initial Units:** 40

**Initial Unit Holder:** Dale Joseph Kapper

**Address of Initial Unit Holder:** 12 Molecombe Drive  
Launceston Tasmania 7250

**Number of Initial Units:** 20

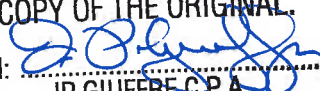
**Initial Unit Holder:** Rosemary Kapper

**Address of Initial Unit Holder:** 12 Molecombe Drive  
Launceston Tasmania 7250

**Number of Initial Units:** 20

**Price Per Initial Unit:** \$1.00

**Name of Trust:** The Oxygen Fit Group Trust

I HEREBY CERTIFY THIS IS A TRUE  
COPY OF THE ORIGINAL.  
Signed:   
JP GIUFFRE C.P.A.

J. GIUFFRE & CO. P/L  
A.C.N. 056 312 479  
ACCOUNTANTS  
P.O. Box 115,  
Geelong 3220  
PH (03) 5229 6526





**Executed** as a Deed:

By the Trustee Oxygen Fit Group Pty  
Ltd (A.C.N. 152 435 615) upon the  
date set out in the schedule in accordance with  
Section 127 of the *Corporations Act*  
2001 (Cth)



Lloyd Thomas - Director



David Serrano - Director



Dale Kapper - Director

I HEREBY CERTIFY THIS IS A TRUE  
COPY OF THE ORIGINAL

Signed:   
JP GIUFFRE C.P.A.

J. GIUFFRE & CO. P/L  
A.C.N. 056 312 479  
ACCOUNTANTS  
P.O. Box 115,  
Geelong 3220  
PH (03) 5229 6526







and by the Initial Unit Holder Thomas Empire Pty Ltd (A.C.N. 152 384 293)  
in accordance with Section 127 of the Corporations Act 2001 (Cth):



Signature of Director



Signature of Director / Secretary

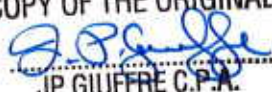


Print Name of Director



Print Name of Director / Secretary

I HEREBY CERTIFY THIS IS A TRUE  
COPY OF THE ORIGINAL.

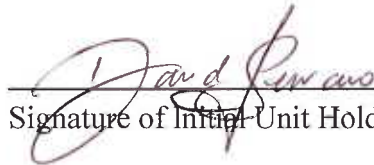
Signed: 

JP GIUFFRE C.P.A.

and by the Initial Unit Holder David Serrano in the presence of:



Signature of Witness



Signature of Initial Unit Holder

J. GIUFFRE & CO. P/L  
A.C.N. 056 312 479  
ACCOUNTANTS  
P.O. Box 115,  
Geelong 3220  
PH: (03) 5229 6526



Print Name of Witness

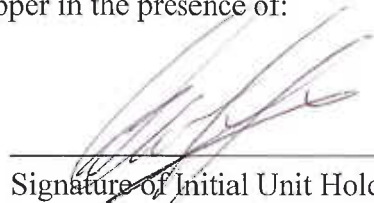


Print Name of Initial Unit Holder

and by the Initial Unit Holder Dale Joseph Kapper in the presence of:



Signature of Witness



Signature of Initial Unit Holder



Print Name of Witness



Print Name of Initial Unit Holder





and by the Initial Unit Holder Rosemary Kapper in the presence of:

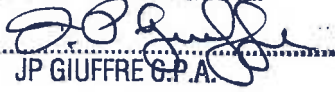
  
\_\_\_\_\_  
Signature of Witness

  
\_\_\_\_\_  
Signature of Initial Unit Holder

Stephanie Kapper  
Print Name of Witness

Rosemary Kapper  
Print Name of Initial Unit Holder

I HEREBY CERTIFY THIS IS A TRUE  
COPY OF THE ORIGINAL.

Signed:   
JP GIUFFRE S.P.A.

Note: A company can execute this deed without using a common seal if:

- (a) two of its directors sign it;
- (b) one of its directors and one of its company secretaries (who are separate persons) sign it; or
- (c) where the company has a sole director who is also its sole company secretary, that person alone signs it.

**J. GIUFFRE & CO. P/L**  
A.C.N. 056 312 479  
**ACCOUNTANTS**  
P.O. Box 115,  
Geelong 3220  
PH: (03) 5228 6526





# DEED OF APPOINTMENT / REMOVAL OF A TRUSTEE

## THIS DEED

is made on **Wednesday 28<sup>th</sup> of November 2012**

## BETWEEN

1. LLOYD THOMAS  
of 27 Creswick Drive, POINT COOK VIC 3030  
("the new trustee")
2. OXYGEN FIT GROUP PTY LTD  
of 27 Creswick Drive, POINT COOK VIC 3030  
("the old trustee")

## WHEREAS

By Deed of Settlement made the 2<sup>nd</sup> day of August 2011 THE OXYGEN FIT GROUP PTY LTD ("the Deed of Trust") made between of as the Settlor and OXYGEN FIT GROUP PTY LTD as the Trustee, was formed.

## IT IS AGREED

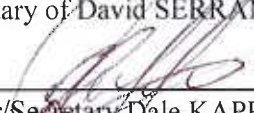
1. Pursuant to the Deed of Nomination OXYGEN FIT GROUP PTY LTD holds and still holds the power pursuant to Clause 9.1 of the Deed of Trust to appoint and remove Trustees of the Trust.
2. Pursuant to the power of the above mentioned, OXYGEN FIT GROUP PTY LTD confirms and ratifies the removal of OXYGEN FIT GROUP PTY LTD and the appointment of LLOYD THOMAS as Trustee of the Trust pursuant to the Deed of Appointment.
3. Pursuant to Clause 9.1 of the Deed of Trust, THOMAS EMPIRE PTY LTD, David SERRANO and Dale KAPPER Rosemary KAPPER ("the Unit Holders") consent to the resignation of OXYGEN FIT GROUP PTY LTD and the appointment of LLOYD THOMAS as the new trustee of the above mentioned Trust.
4. Confirms by my signature is my acceptance, pursuant to the Deed of Appointment, of the Office as Trustee of the Trust and that LLOYD THOMAS has complied and will comply with the obligations imposed by the Deed of Trust with effect from the date of the Deed of Appointment.

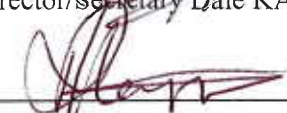
SIGNED SEALED AND DELIVERED by )  
the Unit Holders of THE OXYGEN FIT )  
GROUP PTY LTD in the presence of: )

(Witness)

  
Lloyd THOMAS  
(Director/Secretary of THOMAS EMPIRE PTY LTD)

  
(Director/Secretary of David SERRANO)

  
(Director/Secretary Dale KAPPER)

  
(Director/Secretary Rosemary KAPPER"

SIGNED SEALED AND DELIVERED  
by OXYGEN FIT GROUP PTY LTD

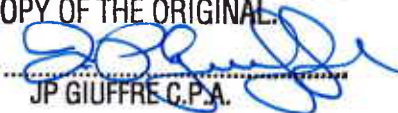
(Witness)

  
OXYGEN FIT GROUP PTY LTD

SIGNED SEALED AND DELIVERED )  
by LLOYD THOMAS by authority of the Director and )  
Secretary in accordance with The Constitution in the )  
presence of: )

  
Lloyd THOMAS

I HEREBY CERTIFY THIS IS A TRUE  
COPY OF THE ORIGINAL.

Signed:   
JP GIUFFRE C.P.A.

J. GIUFFRE & CO. P/L  
A.C.N. 056 312 479  
ACCOUNTANTS  
P.O. Box 115,  
Geelong 3220  
PH (03) 5229 6526

# DEED OF APPOINTMENT / REMOVAL OF A TRUSTEE

## THIS DEED

is made on 16<sup>th</sup> day of September 2015

## BETWEEN

1. THOMAS PROPERTY MANAGEMENT PTY LTD  
of 114 Yarra Street GEELONG VIC 3220  
("the new trustee")
2. Lloyd THOMAS  
of 27 Creswick Drive, POINT COOK VIC 3030  
("the old trustee")

## WHEREAS

By Deed of Settlement made the 2<sup>nd</sup> day of August 2011 THE OXYGEN FIT GROUP TRUST("the Deed of Trust") made between of as the Settlor and Lloyd THOMAS as the Trustee, was formed.

## IT IS AGREED

1. Pursuant to the Deed of Nomination Lloyd THOMAS holds and still holds the power pursuant to Clause 9.1 of the Deed of Trust to appoint and remove Trustees of the Trust.
2. Pursuant to the power of the above mentioned, Lloyd THOMAS confirms and ratifies the removal of Lloyd THOMAS and the appointment of THOMAS PROPERTY MANAGEMENT PTY LTD as Trustee of the Trust pursuant to the Deed of Appointment.
3. Pursuant to Clause 9.1 of the Deed of Trust, THOMAS EMPIRE PTY LTD ("the Unit Holder") consents to the resignation of Lloyd THOMAS and the appointment of THOMAS PROPERTY MANAGEMENT PTY LTD as the new trustee of the above mentioned Trust.
4. Confirms by my signature is my acceptance, pursuant to the Deed of Appointment, of the Office as Trustee of the Trust and that THOMAS PROPERTY MANAGEMENT PTY LTD has complied and will comply with the obligations imposed by the Deed of Trust with effect from the date of the Deed of Appointment.

I HEREBY CERTIFY THIS IS A TRUE  
COPY OF THE ORIGINAL

Signed:

JP GIUFFRE C.P.A.

**GIUFFRE & CO. P/L**

A.C.N. 056 312 479  
ACCOUNTANTS  
P O Box 115,  
Geelong 3220  
Ph (03) 5229 6526





**SIGNED SEALED AND DELIVERED** )  
by the Unit Holders of THE OXYGEN )  
FIT GROUP TRUST in the presence of: )

(Witness)



**Lloyd THOMAS**  
(Director/Secretary of THOMAS EMPIRE PTY LTD)

**SIGNED SEALED AND DELIVERED** )  
by Lloyd THOMAS ACN 26 by authority of the )  
Director and Secretary in accordance with The )  
Constitution in the presence of: )

(Witness)



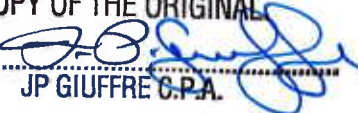
(Director/Secretary of the Trustee company)

**SIGNED SEALED AND DELIVERED** )  
by THOMAS PROPERTY MANAGEMENT PTY )  
LTD: )

**THOMAS PROPERTY MANAGEMENT**  
PTY LTD



I HEREBY CERTIFY THIS IS A TRUE  
COPY OF THE ORIGINAL

Signed:   
JP GIUFFRE C.P.A.

**J. GIUFFRE & CO. P/L**  
A.C.N. 056 312 479  
**ACCOUNTANTS**  
P.O. Box 115,  
Geelong 3220  
PH: (03) 5229 6526

